

HASSAN & ASSOCIATES

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■ STRICTLY CONFIDENTIAL — ATTORNEY-CLIENT PRIVILEGE ■

LEGAL NOTICE

Under Section 80 CPC | Sent via Registered Post & WhatsApp (Video Recorded)

Notice No.:	HA/LN/2024/007
Dated:	01st February, 2024
Instructed By:	Mst. Saira Hussain (Client) CNIC: 42301-7821043-6
Sent To:	1) Mr. Tariq Hussain, 74/C Block 6 PECHS, Karachi 2) Mr. Imran Malik, Flat 7-D, Sea View Apartments, Clifton, Karachi
Subject:	Illegal Sale of Co-owned Property — Demand to Rectify & Compensate

Under instructions from and on behalf of my client Mst. **Saira Hussain**, wife of Zubair Ahmed, currently residing at Riyadh, Kingdom of Saudi Arabia, I am addressing you as follows:

BACKGROUND FACTS

- That my client and Mr. Tariq Hussain (Addressee No. 1) jointly purchased the residential property bearing Survey No. 74/C, Block 6, PECHS, Karachi, measuring 240 Square Yards, via registered Sale Deed dated 09th June, 2011 (Document No. SR/KS/2011/4492). Each co-owner holds an undivided 50% (fifty percent) share in the said property. This fact is clearly reflected in the registered title deed and mutation records maintained by the Sub-Registrar, Karachi South.
- That my client contributed a sum of Rs. 19,00,000/- (Rupees Nineteen Lakhs Only) being her equal share of the purchase price, transferred from her personal savings account maintained at Meezan Bank Limited, Gulshan Branch, Karachi, Account No. 0169-0105543183, on 07th June, 2011.
- That my client, having trusted her brother Mr. Tariq Hussain with custody of the original title documents during her extended stay abroad, was shocked to discover upon her return to Pakistan in January 2024 that Mr. Tariq Hussain had, without her knowledge, consent, or co-signature, executed a Sale Deed on 18th November, 2023 (Registration No. SR/KS/2023/8841) in favour of Mr. Imran Malik (Addressee No. 2) for the entire 240 Square Yards property, for a stated consideration of Rs. 1,20,00,000/-.
- That the said sale is illegal, void ab initio, and an act of criminal breach of trust under Section 406 of the Pakistan Penal Code, 1860, as Addressee No. 1 had no authority to sell the entirety of a co-owned property without the documented consent of my client. The doctrine of Nemo Dat Quod Non Habet (one cannot give what one does not have) applies squarely to this transaction.
- That independent legal research and the Witness Affidavit of Mst. Nasreen Bibi (neighbouring resident) confirms that: (a) Addressee No. 1 was expressly reminded of my client's co-ownership on 22nd July, 2023; and (b) the sale to Addressee No. 2 proceeded in bad faith, as Addressee No. 2 had visited the property and was in a position to conduct due diligence, including verifying co-ownership at the Sub-Registrar's office.

6. That the market value of the property as of November 2023, based on Sindh Revenue Board approved valuations for Block 6, PECHS, was Rs. 2,20,00,000/- to Rs. 2,50,00,000/-, considerably above the stated consideration of Rs. 1,20,00,000/-. This undervaluation further suggests collusion and fraud to the detriment of my client.

LEGAL DEMANDS

In light of the above facts, my client hereby **DEMANDS** as follows:

- I. That **Mr. Tariq Hussain** immediately pay my client her rightful 50% share of the sale proceeds, i.e., Rs. 60,00,000/- (Rupees Sixty Lakhs Only), along with additional damages of Rs. 10,00,000/- for mental anguish and illegal withholding, within **fifteen (15) days** of receipt of this notice.
- II. That **Mr. Imran Malik** refrain from commencing any construction, renovation, or further transfer of the Disputed Property pending resolution of this matter.
- III. That both Addressees jointly execute a rectification deed acknowledging my client's 50% ownership, or alternatively, pay the full market-rate compensation for her share as determined by an independent valuer.
- IV. Failing compliance within the aforesaid period, my client shall be constrained to initiate civil proceedings for declaration, permanent injunction, cancellation of Sale Deed No. SR/KS/2023/8841, and recovery of damages; as well as to file a criminal complaint under Sections 406, 420, 468, and 471 of the Pakistan Penal Code, 1860.

This notice is being issued without prejudice to any other rights and remedies available to my client under the law.

Adv. **Kamran Hassan** Hassan & Associates Karachi Bar
Enroll. No. KHC/2004/1187

ACKNOWLEDGMENT OF RECEIPT Addressee's
Signature: _____ Date: _____
Mode of Receipt: _____